



SPONSOR: Sen. Walsh & Rep. Carson
Sen. Huxtable; Reps. Burns, Lambert

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 144

AN ACT TO AMEND TITLE 25 OF THE DELAWARE CODE RELATING TO THE DELAWARE MANUFACTURED HOME RELOCATION TRUST FUND.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Subchapter V, Chapter 70, Title 25 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 7041. Delaware Manufactured Home Relocation Authority [For application of this section, see 79 Del. Laws, c. 304, § 7].

(c) The Board shall do all of the following:

(3) ~~Authorize payments and adjust, eliminate, or reinstate the Trust Fund assessment established under § 7042 of this title only if~~ With the affirmative vote of at least 3 of the 5 members of the Board approve the payments or assessments. Board, authorize any of the following regarding the Trust Fund under § 7042 of this title:

a. Payments.

b. Adjust, eliminate, or reinstate the Trust Fund assessment.

c. Adjust, eliminate, or reinstate the cap on the Trust Fund.

§ 7042. Delaware Manufactured Home Relocation Trust Fund [Expires July 1, 2029, pursuant to subsection (d) of this section].

(e) The DMHRA Board may establish and adjust the cap on the Trust Fund ~~is \$15 million. The cap may be adjusted, eliminated, or reinstated by the Board at any time, subject to the voting requirements under § 7041(c)(3) of this title. based on the costs reasonably necessary to carry out the purposes of the Trust Fund under subsection (b) of this section.~~

SYNOPSIS

This Act repeals the cap on the amount of money in the Delaware Manufactured Home Relocation Trust Fund (Trust Fund), resolving contradictory provisions in current law regarding the Delaware Manufactured Home Relocation Authority (DEMhRA) Board's authority to adjust the amount in the Trust Fund.

Under § 7042(e) of Title 25, the DEMhRA Board can adjust, eliminate, or reinstate the cap on the Trust Fund with the approval of at least 3 of the 5 members of the DEMhRA Board. However, § 7042(e) also provides a dollar amount cap on the amount in the Trust Fund, which under the Delaware Constitution, DEMhRA cannot change.

DEMHRA needs to be able to adjust the cap on the Trust Fund because under § 7041(b)(1) and § 7042(b) of Title 25, the money in the Trust Fund is the only money available to DEMHRA to pay administrative costs and to carry out DEMHRA's responsibilities under Chapters 70 and 71 of Title 25. Recent legislation has given DEMHRA additional responsibilities under subchapter VI of Chapter 70 when a community owner seeks to increase the rent, but DEMHRA does not receive any appropriations to support this work. Instead, except for money appropriated for board meeting stipends, DEMHRA is "responsible for all direct and indirect costs for its operations under § 7042 of this title, including receipts and disbursements, personnel, rental of facilities, and reimbursement to other state agencies for services provided and, therefore, must be fiscally revenue-neutral."

This Act also makes technical corrections to conform existing law to the standards of the Delaware Legislative Drafting Manual by revising § 7041(c)(3) of Title 25 so that the number of Board members who must vote in favor of adjusting the Trust Fund is clearly stated with the Board's other responsibilities.

Author: Senator Walsh